

Data Processing Agreement

Between the School (Controller) and Upskill Energy Limited (Processor)

Template for the School's DPO / counsel · UK GDPR + DPA 2018 + PDPPL aligned

STATUS

This is our standard DPA, provided for your DPO's review before signature. It incorporates the Information Security Statement (Document 04), the Sub-processor Register (Document 03), and the Data Retention & Deletion Schedule (Document 05) by reference. Where any sub-processor's counter-signed DPA is still being formalised, that is shown honestly in Document 03.

1. Roles and scope

The School is the **data controller** and Upskill Energy Limited ("the Processor") is the **data processor** for personal data processed to deliver The English Hub to the School's students and staff. This DPA applies to that processing and forms part of the Pilot Agreement (Document 01) or any annual deployment agreement.

2. Subject-matter and details of processing

Subject matter	Provision of an AI-assisted GCSE/IGCSE English learning and marking platform.
Duration	The term of the Pilot Agreement or annual deployment agreement, plus the retention windows in Document 05.
Nature & purpose	Account management; storage and display of student work; AI-assisted formative marking; progress analytics; transactional email; parent progress reporting; support.
Categories of data subject	Students (the majority under 18), teachers, school administrators, and linked parents/guardians.
Categories of personal data	Name, email, year group, exam board, date of birth / age bracket, essay submissions and marking feedback, usage data, IP address (truncated for analytics), and linked parent/guardian email.
Special-category data	None deliberately collected. Essay free-text may incidentally contain sensitive content; safeguarding-relevant disclosures are routed to the Designated Safeguarding Lead (Document 08).

3. Processor obligations

- Process personal data only on the School's documented instructions, including for international transfers, unless required by law (in which case the Processor will inform the School where lawful to do so).
- Ensure persons authorised to process the data are bound by confidentiality.
- Implement the technical and organisational measures in the Information Security Statement (Document 04).
- Respect the conditions for engaging sub-processors (clause 5).
- Assist the School, by appropriate measures, in responding to data-subject-rights requests.
- Assist the School with security, breach notification, data protection impact assessments, and prior consultation obligations.
- At the School's choice, delete or return all personal data at the end of the engagement, per Document 05.

- Make available all information necessary to demonstrate compliance, and allow for and contribute to audits.

4. Children's data

The Processor designs to the ICO Age Appropriate Design Code (Children's Code). High-privacy defaults are applied in code to every under-18 account — personalised recommendations, streak gamification, behavioural nudges, non-essential analytics, marketing, public leaderboards and geolocation are all off by default. The minimum age is 11; for users aged 11–15 a parent or guardian email is required and, for under-13s, verifiable parental consent is collected via an email-loop before the account activates (UK GDPR Article 8).

5. Sub-processors

The School provides general authorisation for the Processor to engage the sub-processors listed in the Sub-processor Register (Document 03). The Processor will inform the School of any intended addition or replacement, giving the School the opportunity to object. Each sub-processor is bound by data-protection terms no less protective than this DPA. Where a sub-processor's counter-signed DPA is still being formalised, the Register shows this transparently rather than overstating the position.

AI SUB-PROCESSOR — DATA MINIMISATION

AI-assisted marking is performed by Anthropic (Claude). The Processor sends only the learner's essay free-text, the question text, and the exam board and year. **No name, email, date of birth or school is sent to the AI sub-processor.** The Processor's contractual position prohibits the use of submissions to train models; the counter-signed AI data-processing agreement and written zero-retention confirmation are being finalised with counsel and will be shared with the School's DPO once closed.

6. International transfers

Personal data is processed across the European Union (primary database), the United Kingdom (backend and controller seat), and the United States (AI inference and certain processors). Transfers outside the UK/EU rely on the relevant provider's Standard Contractual Clauses or equivalent safeguards. For students resident in the State of Qatar, the platform additionally captures explicit cross-border consent under PDPPL Article 17 at sign-up, naming each destination jurisdiction.

7. Personal data breach

The Processor notifies the School without undue delay, and in any event within **72 hours** of becoming aware of a personal data breach affecting the School's data, providing the information the School needs to meet its own notification obligations to the ICO and, where relevant, to the NCGAA in Qatar.

8. Data-subject rights

The platform provides self-service access, export, correction, consent withdrawal and deletion. For requests that cannot be fulfilled in-product, the Processor assists the School and responds within **30 calendar days** of a verified request.

9. Audit

On reasonable notice and no more than once per year (or following a breach), the Processor will respond to a security/data-protection questionnaire (Document 07 is a pre-completed version) and provide the documentation in this pack. On-site or live audit can be arranged by agreement.

10. Liability and term

This DPA runs for the duration of the underlying agreement and survives to the extent necessary for the retention and deletion obligations in Document 05. Liability follows the cap in the underlying agreement.

Signatures

For the School (Controller)

Name: _____

Role: _____

Signature: _____

Date: _____

For The English Hub (Processor)

Name: Calum Johnson

Role: Founder & Data Protection Officer

Signature: _____

Date: _____